

		document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” Under subdivision (b) of section 2025.450, the motion must: (1) set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice; and (2) be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. Here, plaintiff Satin has not refused to appear for deposition and defendants have not taken a certificate of non-appearance for him. Counsel for the parties have simply disagreed about the dates for the deposition and the sequence of discovery. Plaintiffs contend that the motion is moot because their counsel has provided dates for the deposition that are within 45 days of the hearing. This is not good enough. Despite plaintiffs’ insistence that the deposition should be taken after defendants serve their written responses to discovery, the Code provides that “[e]xcept as otherwise provided by a rule of the Judicial Council, a local court rule, or a local uniform written policy, the methods of discovery may be used in any sequence, and the fact that a party is conducting discovery, whether by deposition or another method, shall not operate to delay the discovery of any other party.” Thus, while the Court cannot grant the motion and compel the deposition and impose sanctions, counsel should resolve the dispute amicably.
12	25-01463695 <i>Sobhani vs. Stater Bros. Markets</i>	Motion for Summary Judgment and/or Adjudication Defendant Stater Bros. Markets’ Motion for Summary Judgment is GRANTED. “In order to establish liability on a negligence theory, a plaintiff must prove duty, breach, causation and damages. [¶] A store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved.” (<i>Ortega v. Kmart Corp.</i> (2001) 26 Cal.4th 1200, 1205 [cleaned up].) “The elements of a cause of action for premises liability are the same as those for negligence.” (<i>Castellon v. U.S. Bancorp</i> (2013) 220 Cal.App.4th 994, 998.) Defendant has satisfied its burden of disproving the element of duty. Defendant submits the Reciprocal Easement and Operation Agreement (the Agreement). The Agreement provides: “the Operator shall maintain the Common Area of the Shopping Center in accordance with the

		requirements of Subparagraph A above. (Ex. A, § 6.1.) The Agreement defines “Operator” as “the Person designated from time to time by the Consenting Parties to maintain and operate the Common Area of the Shopping Center.” (Ex. A, § 1.1.) “The Consenting Parties hereby designate Developer as the initial Operator, and Developer accepts such appointment.” (Ex. A, § 1.1.) Home Depot U.S.A., Inc is the Developer within the Agreement. (Ex. A, p. 1.) The common areas are “areas of the Shopping Center which are not actually covered by (i) a building; (ii) appurtenances thereto” (Ex. A, § 1.1.) Thus, Defendant has demonstrated Home Depot is the party responsible for the common areas, including the parking lots where Plaintiff claims the incident occurred. Therefore, Defendant has met its burden of showing it owed no duty to Plaintiff in maintaining the area where Plaintiff fell. Thus, the burden shifts to Plaintiff to show an issue of material fact. However, Plaintiff did not oppose the motion and, thus, have not met his burden. Accordingly, Defendant’s Motion for Summary Judgment is granted.
13	25-01513186 <i>Virtual Film School, Inc. vs. EON Reality, Inc.</i>	Motion – Other The Motion for an Undertaking by defendants EON Realty, Inc., Dan Lejerskr, 3D Adda Pte Ltd., and Sovereign Trust International, Ltd. is CONTINUED to _____. Defendants move for an order requiring Plaintiff Virtual Film School, Inc. to post a bond of \$50,000 pursuant to Code of Civil Procedure, section 1030. The purpose of section 1030 “is to enable a California resident sued by an out-of-state resident to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within the court's jurisdiction.” (<i>Alshafie v. Lallande</i> (2009) 171 Cal.App.4th 421, 428 [cleaned up].) To prevail on the motion, a defendant must show: (1) the plaintiff resides out-of-state or is a foreign corporation; and (2) there is a “reasonable possibility” the moving defendant will prevail in the action. (Code Civ. Proc., § 1030, subd. (a).) Defendants argue Plaintiff is a foreign corporation because the FAC alleges Plaintiff is a Delaware corporation doing business in California. (See FAC, ¶ 1.) Defendants support this fact by providing a copy of Plaintiff’s filing with the California Secretary of State, dated 5/20/22, showing it is an “Out-of-State Stock Corporation”. (Parvaneh Decl., ¶ 2, Ex. 3.) Plaintiff argues the motion should be continued or denied without prejudice so the Court can evaluate its corporate status at the time of the hearing. Plaintiff states it has always maintained its principal business location in California, its Founder and CEO has resided in California for the entirety of Plaintiff’s corporate existence and formed as a Delaware corporation to effectuate investment in the company. (Chindamo Decl., ¶¶ 4-6.) In addition, Plaintiff explains the steps it has taken to convert